

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

The Claremont City Council held a meeting on Wednesday, January 24, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor Spencer Batchelder
Ward III Councilor Jonathan Hayden
Assistant Mayor Debora Matteau
At-Large Councilor Joel Tremblay
At-Large Councilor Wayne Hemingway
At-Large Councilor William Limoges
At-Large Councilor Nicholas Koloski -Absent
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to accept the minutes of the January 3, 2023, City Council meeting.

Voice vote:

Tremblay –yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

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A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to accept the minutes of the January 10, 2024, City Council meeting.

Voice vote:

Tremblay –yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

MAYOR’S NOTES

Mayor Girard read a retirement proclamation for Department of Public Works retirees; Scott DeCoteau and Kevin Minckler.

Mayor Girard mentioned it would have been Colby Casey’s birthday, State Representative Stone read a declaration of memoriam in honor of Colby Casey.

Mayor Girard noted there are two other Department of Public Works retirees that could not make it to the meeting, and read the proclamations of Dean Hooper and Terry Miller.

Filing for position of Claremont School Board opened today through Friday February 2nd. The election will be for three, three-year terms for school board, one year for moderator, one year for the Treasurer, and one year for the District Clerk.

On February 3rd, 2024 at 9:00am the Claremont School District will hold deliberative session at Stevens High School.

On February 17th, the Claremont Cardboard Sled Race will be held at Arrowhead.

CITY MANAGER’S REPORT

**Contemporaneous meeting notes for use with other resources in preparation of draft minutes
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Manager Manale noted he had an opportunity to meet with the five State Representatives. Examples of their commitment is supporting the City's request to change fire codes sprinkler requirements for new units.

Manager Manale gave an update on our website design, and is hoping to bring a template design to Council in March.

Our legal team and planning office have rectified two clean-up items. One is from 2013 involving tax map 64 lot 1, the City confirmed the City owns 9 acres of land of map 64-1, however the tax card for the property indicated that the entire map was privately owned.

In the mid-nineties the City entered into A boundary agreement with the Donovan's of Burrough Road on a portion of the White-Water Reservoir. That boundary agreement and surveyed map were not recorded. The right of way access is only for City-owned vehicles and contractors.

Manager Manale noted Steve Wayland from Vision; our re-appraisal third-party, is here to answer any questions on the methodology and the current state of our city-wide evaluation in Claremont.

Steve Wayland, Project Manager for Vision Government Solutions, gave an overview on commercial and residential increases.

CITIZEN'S FORUM

Mayor Girard reminded everyone that the Citizens forum is to speak on non-agenda items with five minutes to speak.

No one spoke, Mayor Girard closed the forum.

OLD BUSINESS

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to take resolution 2024-20 off the table.

Roll call:

Tremblay –yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

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O’Hearne – yes

Girard – yes

Motion carried 8-0

Manager Manale explained resolution 2024-20, and noted the City should spend the money by February 11th, 2024 to avoid fines for arbitrage.

Resolution 2024-20 Repurposing of the 2021 Bond

RESOLUTION 2024-20

Reallocation of Communications Dispatch Center Bond Principal

WHEREAS, the City of Claremont, New Hampshire (the “City”) issued a 2021 General Obligation Bond on 01/06/2021 in the principal amount of \$1,000,000 (the “2021 Bond”) to finance equipment for and improvements to the Communications Dispatch Center (the “2021 Project”) pursuant to City Council Resolution 2021-9;

WHEREAS, the City anticipates receiving federal and/or state funding to complete the 2021 Project and so has not proceeded to expend the 2021 Bond;

WHEREAS, there currently remains \$840,750 of unspent principal of the 2021 Bond;

WHEREAS, the City Council recognizes an urgent need to repurpose the unspent 2021 Bond proceeds, and to use unspent principal towards the next debt service payment;

NOW THEREFORE, BE IT RESOLVED by the City Council, after a public hearing duly noticed, acting under and pursuant to the City Charter, including Section 49 therein, and the laws of the State of New Hampshire including RSA Chapter 33:3-a, that:

BE IT FURTHER RESOLVED The City is authorized to repurpose \$505,250 of unspent principal from the 2021 Bond (the “Repurposed Principal”), to finance costs to acquire and install two elevators located at City Hall (the “Project”), which costs were originally included in the City’s 2024 capital budget;

BE IT FURTHER RESOLVED The Repurposed Principal are appropriated to provide for costs of the Project; (with no impact to the tax rate)

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BE IT FURTHER RESOLVED In all other respects, the provisions of Resolution 2021-9 remain valid and in full force and effect as if incorporated herein;

BE IT FURTHER RESOLVED The Treasurer, City Manager, Clerk, and other proper officials of the City are authorized and empowered in its name and on its behalf to do or cause to be done all such acts and things, not inconsistent herewith, as may be necessary or desirable in order to effect the accomplishment of the Project herein authorized;

BE IT FURTHER RESOLVED The City is further authorized to appropriate \$335,500 unspent 2021 Bond principal to make the upcoming debt service payment on the 2021 Bond, due no later than February 15, 2024, and to remove that expense from the general budgetary lines so that it is treated instead as an expense against the Project;

BE IT FURTHER RESOLVED The Clerk is authorized and directed to file an attested copy of this Resolution in the record of proceedings of the City Council, which record shall be open to public inspection; and All prior actions undertaken by the City consistent with this Resolution are hereby confirmed, ratified and approved.

A motion was made by Councilor Batchelder and seconded by Assistant Mayor Matteau to accept Resolution 2024-20.

Councilor Batchelder Read Resolution 2024-20 into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Tremblay –yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – no

Girard – yes

Motion carried 7-1

NEW BUSINESS

Green Mountain Wind, LLC - MET Tower Requests –Presentation

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Attorney Kelly Ovitt Puc (pronounced puck) from Orr & Reno thanked the Council for the opportunity to present and noted she was here on behalf of client Green Mountain Wind, LLC. Attorney Puc also brought a wind energy consultant if any questions arise.

There are two submitted letters of requests. The client is in the very preliminary stages and the requests relates to Cathole Road.

In 1998 a City Policy was established to restrict building on class 6 roads. Attorney Puc noted Towns can adopt a policy that could overrule the current policy, and noted the first letter of request is to waive this policy.

The second letter of request is to have a temporary access easement up to 5 years – access to construct the tower and have quarterly maintenance.

Attorney Puc mentioned there is no increase burden, the construction of the Met Tower should take about five days and only need quarterly visits from a technician.



Serving New Hampshire since 1908

January 17, 2024

Octavian Manale, City Manager
Claremont City Hall
58 Opera House Square
Claremont, NH 03743-2677

Re: Proposed Ordinance #620, to amend provisions in Article 2 of the Claremont City Code concerning Claremont Development Authority

Dear Mr. Manale:

This office is counsel to the City of Claremont. At your request, we reviewed the proposed amendments to the Claremont City Code to update the provisions in the Code concerning the Claremont Development Authority ("CDA"), including amendments to bring the Code into conformance with the provisions of RSA 162-G and the CDA bylaws as previously approved

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by the City Council.

As required by Claremont City Council Rule 36, we certify that draft Ordinance #620 is in the correct form required by the Claremont City Code and applicable administrative rules.

Sincerely,

James F. Raymond

Ordinance 620 CDA Amendments to City Code

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-FOUR

ORDINANCE #620

CLAREMONT CITY CODE AMENDMENTS

The City of Claremont Ordains:

Section 1. Amendments to Article 2 of the Claremont City Code.

A. Article 2, Division 5, of the Claremont City Code is hereby amended by changing the title to the section and adding or amending the following sections:

1. The title to Division 5 is amended and restated as:

Division 5. CLAREMONT DEVELOPMENT AUTHORITY

2. The Claremont City Code, Article 2, Division 5, is hereby amended by adding a new section, to be numbered 2-86, which section reads as follows:

Sec. 2-86. – Establishment.

The Claremont Development Authority is established under the provisions of RSA 162-G, for the purposes described in RSA 162-G:2, and is granted all powers, duties, and responsibilities described in RSA 162-G, including RSA 162-G:15-a, except those powers and duties expressly reserved to the City Council under RSA 162-G:8.

3. The Claremont City Code, Article 2, Division 5, Sections 2-86 – 2-89, are renumbered as sections 2-87 - 90 and amended and restated as follows:

Section 2-87. Governing Board.

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The Claremont Development Authority shall be governed by a board of directors having nine (9) members, all of whom shall reside within the boundaries of the city. Members shall be nominated by the City Manager and appointed by the City Council. The term of each member shall be three (3) years, except that initial terms of members shall be staggered so that three members are appointed each year. Each member shall serve without compensation. Five (5) directors present shall constitute a quorum of the board of directors to transact any business. No action of the board of directors shall be effective unless it is passed by two-thirds of the directors present and voting. The City Manager shall serve as an ex officio nonvoting member of the board of directors.

Sec. 2-88. - Removal.

Any director of the Claremont Development Authority may be removed by the city manager for good cause.

Sec. 2-89. – Officers; Committees.

The board of directors of the Claremont Development Authority shall elect from its members a chairman, vice-chairman, and secretary, and such other officers and committees as it considers appropriate, and prescribe their duties.

Sec. 2-90. - Rules and regulations.

The board of directors shall establish rules and regulations for the conduct of the business of the Claremont Development Authority, subject to the approval of the City Council.

B. Article III, Division 8, Sections 2-265, of the Claremont City Code, is amended and restated as:

Sec. 2-265. - Other responsibilities.

The department of planning and development and its director are also responsible for the following areas:

- (1) *Historic district commission*: Its meetings, functions and concerns.
- (2) *Claremont development authority*: Its meetings, functions and concerns.
- (3) *Community development efforts* of the city, including the administration of

grants.

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Article 2 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date.

This ordinance shall take effect and be enforced immediately upon passage.

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A motion was made by Councilor O’Hearne and seconded by Councilor Batchelder to table Ordinance 620 and bring it back as a first meeting on February 14, 2024.

Roll call:

Tremblay –yes

Limoges - yes

Matteau – no

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 7-1

Resolution 2024-19 Transfer Funds for Security Cameras

Manager Manale explained the recent damage to City land, property, and parks and wants to purchase a number of cameras, and noted Mr. Burgess our Network Manager, and Avery Hallbauer our Project Manager are working on this.

RESOLUTION 2024-19

Non-Capital Reserve Transfer to 001-417-417520-0000 for Security Cameras

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that

WHEREAS, in July 2008, the City established a Capital Reserve Fund for City Communication and Technology within the City of Claremont; and

WHEREAS, the City needs to maintain and upgrade security cameras for the safety of its citizens and the traveling public and doing so will take significant resources; and

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, to transfer and appropriate the sum of up to \$65,167.96 to be taken from the Capital Reserve Fund for Communication and Technology to the General Services line item 001-417-417520-0000 to provide security cameras through the duration of FY2024 (with no impact on the tax rate); and

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BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be necessary to implement this resolution. (2/3 Vote Required)

Dated this 24th day of January, 2024, in the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Batchelder and seconded by Councilor Limoges to accept Resolution 2024-19.

Councilor Batchelder read Resolution 2024-19 into the record.

Mayor Girard asked questions on behalf of Councilor Koloski:

Will the Parks and Recreation twelve cameras still be there.

Mr. Burgess stated yes, they will still be there.

Will the Parks and Recreation staff still be able to monitor from the front desk.

Mr. Burgess replied, yes, all cameras can be monitored and some cameras will also be displayed at the dispatch center.

Will it all be recorded locally, or cloud based.

There is digital recording at the Community Center as well as one of our digital recorders at the police department, so there could be two copies of a recording.

There is a camera on Pleasant St. will it be used, or taken down.

Mr. Burgess stated there are no plans for the camera on Pleasant Street as of right now.

Mayor Girard opened a public hearing.

Representative Stone, Ward 3, thinks the cameras would be great for preventing vandalism, and thought this was a good use of funds.

Mayor Girard closed the public hearing.

Roll call:

Tremblay –yes

Limoges - yes

Matteau – yes

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Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

Resolution 2024-24 BRIC Grant – Public Hearing

Director Gleeson explained this grant would be used for the planning phase of twin culverts (on Washington St. headed to Walmart) and noted this would give us the opportunity to apply for grants and funding at a federal level.

RESOLUTION 2024-24

Approval to enter into a grant agreement for the BRIC Grant for Building Resilient Communities and Infrastructure.

BE IT RESOLVED by the Claremont City Council, after a public hearing, duly noticed, that:

WHEREAS, the City wishes to accept funds from the Division of Homeland Security and Emergency Management (HSEM) to complete projects relating to the engineering scoping study, hydrology study, preliminary plans, and a cost-benefit analysis for the Twin Culverts on Washington Street; and

WHEREAS, in accordance with the "FY 2023 BRIC Grant for Building Resilient Communities and Infrastructure", the New Hampshire Department of Safety, Division of Homeland Security and Emergency Management (HSEM) requires that a local vote of 2/3 or greater be included with the grant agreement to meet the threshold for project readiness; and

WHEREAS, these actions are in response to the application acceptance; and

WHEREAS, the City wishes to secure necessary resources for building a more resilient infrastructure and addressing potential hazards; and

NOW, THEREFORE, BE IT RESOLVED by the City Council to authorize the city manager, or his designees, to take such actions as may be necessary to accept the grant for \$200,000 with a local match of \$20,000 coming from the Municipal Transportation Fund (with no impact to the tax rate).

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BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution.
(2/3 vote required)

Dated this 24th day of January 2024, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Hemingway and seconded by Councilor Batchelder to accept Resolution 2024-24

Councilor Hemingway read Resolution 2024-24 into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Tremblay – yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

Physical Fitness Incentive Presentation

Chief Wilmot explained the Police Officer incentive to a bi-annual stipend with a fitness test in September for financial incentive, and again in April.

January 16, 2024

Claremont City Council
58 Opera House Square
Claremont, NH 03743

RE: Police Officer Incentive, Memorandum of Understanding

Dear Manager Manale and Members of the Honorable Claremont City Council:

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This memorandum concerns a correction to the Collective Bargaining Agreement (CBA) between the City of Claremont (“the City”) and the New England Police Benevolent Association, Local 217, Claremont Police Benevolent Association, Claremont Police Department (“the Union”) (collectively, “the Parties”). The CBA was ratified by the Honorable Claremont City Council and the Union, and went into effect on July 1, 2023.

On April 25, 2023, the Parties had their final negotiating session and reached a tentative agreement on a package deal subject to ratification by the Union and the City. On April 25, 2023, at approximately 6:45 p.m. the City provided the Union with a document entitled “Negotiated – Items of PD NEBPA Contract” summarizing the Parties’ agreement. This summary contained a reference at the end of the document about a “Police Officer Incentive” that summarized a change as “Change calendar year stipend to bi-annual stipend. October 1st and April 1st as the two annual evaluation dates.” Thereafter, for the Parties’ collective review and any necessary correction, the City provided the Union with redlined changes to the CBA to reflect the Parties’ agreement. The Union and the City subsequently each ratified and signed the CBA.

Since ratification, it came to the Parties attention that the change to the Police Officer Incentive was not included in the final CBA, as the Parties had intended. Accordingly, the Parties agreed to amend the CBA to include the intended change, by allowing for Physical Fitness Evaluations during the months of April and October, each test allowing members to earn a maximum of \$600 should they successfully negotiate all the events within the prescribed age/gender requirements set forth by the NH Police Standards and Training Council.

This MOU has already been presented to the Union for their review and concurrence, which has been obtained. As of this date, the MOU has been fully executed by all parties. The additional costs associated with this correction can be absorbed in my current FY24 Police Budget.

Thank you for your attention to this matter and I look forward to discussing this further.

Respectfully submitted,



Brent W. Wilmot
Chief of Police

Mayor Girard asked why the Council is seeing this now when the MOU was signed in early November.

Chief Wilmot explained the impact won’t happen until spring.

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MOU Officer-in-Charge Initiative Presentation

Chief Wilmot is trying to stay active to defeat burn out and address staffing concerns, Chief Wilmot noted the Officer-in-Charge Initiative doesn't change the current CBA, and allows other officers to step into supervisory roles during vacancies.

Councilor Limoges asked if this can cause any liability.

Chief Wilmot explained the officer would have to take and pass an exam, send in a letter of intent, and part-take in an administrative class.

Mayor Girard clarified that a current supervisor would still have the first opportunity cover these shifts. Chief Wilmot replied yes.

Councilor O'Hearne asked if the Police Commission was okay with this. Chief Wilmot replied yes.

RE: Officer-in-Charge Memorandum of Understanding

Dear Manager Manale and Members of the Honorable Claremont City Council:

The purpose of this memorandum is to discuss the goals and objectives of the Officer-In-Charge initiative undertaken by the Claremont Police Administration. The Honorable Council should not be required to take any action as a result of this Memorandum of Understanding (MOU), or my presentation regarding same. Some of the objectives that we were looking to achieve with this MOU included, but were not limited to:

- Evaluating upcoming leaders within the organization;
- Reducing burnout associated with filling vacant supervisor shifts;
- Lowering costs associated with supervisor overtime;
- Providing unique learning opportunities for members of the organization.

Currently, the Claremont Police Department is staffed with four Patrol supervisors and one supervisor in the Detective Division. In the event that one of those four Patrol supervisors uses earned time, or is out of work for an extended duration due to Family Medical Leave or Workmen's Compensation, their vacant shifts have to be filled with another supervisor. In the interest of having a larger bench to absorb those vacant shifts, the Police Administration sought alternatives to our current model; thus, the Officer-In-Charge (OIC) program was born.

Briefly, this is how the OIC program functions: In the event of a vacant Patrol Supervisor shift, a Patrol Officer may be selected to serve as the OIC. A Patrol Officer serving as the OIC pursuant

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to this initiative would not be responsible for personnel evaluations, discipline, or case management. A Patrol Officer serving as the OIC pursuant to this initiative shall be able to conduct roll call at the beginning of the shift, assign cruisers, make beat assignments, and assist in the decision-making at calls-for-service. A Patrol Officer serving as the OIC pursuant to this initiative should be capable of knowing when a situation requires additional resources, and be able to marshal those resources on demand. The OIC should then be able to competently brief the oncoming supervisor as to what happened during the shift, and the important issues of which they should be aware.

Pursuant to the Collective Bargaining Agreement and the Claremont Police Department's General Orders, an employee assigned to temporarily assume the responsibilities of a position other than their own, shall receive increased compensation for such assignment. In this case, the rate of pay for a member filling an OIC role would be 9% higher than their normal rate as a police officer. The rate established in the MOU is equal to the rate of pay for a Probationary Sergeant, pursuant to the current Collective Bargaining Agreement. There is no impact on my budget as a result of this MOU.

This program provides the Administration with the unique ability to evaluate line-level officers performing in leadership roles. It gives us additional coaching/training opportunities, and provides invaluable information as to who the most desirable candidates are for promotion, should those opportunities present themselves in the future. Furthermore, the program provides additional opportunities for our staff to explore areas within the law enforcement profession (in this case, leadership/management roles). As a philosophy, the Claremont Police Administration is always looking for new/creative ways to keep our employees engaged, and to allow them to explore myriad aspects of the profession.

This MOU has already been presented to the Labor Union for their review and concurrence, which has been obtained. The MOU does not modify the current contract, and the use and/or elimination of the program rests with me. As of this date, the MOU has been fully executed by all parties, and the Police Administration is working to come up with the qualifications for patrol officers wishing to serve in this capacity.

Thank you for your attention to this matter, and I look forward to discussing this further.

Respectfully submitted,



Brent W. Wilmot
Chief of Police

Council Goals and Objectives

Manager Manale explained that he had asked all departments to list their goals and objectives, Manager Manale read all goals line by line to the Council, and is looking for the Council to make any additions or changes and then bring them back to department heads for discussion.

Assistant Mayor Matteau stated in general she wanted a broad goal of things that are actionable and measurable. Assistant Mayor Matteau noted there is lots of planning but wants to see more outcome. Under housing, Assistant Mayor Matteau wants an objective to be to work towards programs and seek opportunities of home ownership in blighted areas of the city.

Councilor Limoges noted under technology, the need to work on the website. Citizens have shared the website is hard to navigate.

Councilor Batchelder noted under goal #6 that there are a lot of boards and wants more engagement in community and suggested a dashboard for these boards on the website.

Councilor Hayden suggested the ability for departments or Council to give education or have access to information, like Sullivan programs, HUD, essentially to create a way educate and leverage Federal and State funding.

Councilor Limoges also wants a goal to maintain and at least keep current staffing.

Manager Manale will add these Council suggestions to the Goals and Objective sheet and bring back to the next meeting for review.

COMMITTEE REPORTS

Councilor Hayden was given the packet for the Steering Committee and it includes two businesses proposals out for a bid, and noted interviews should be starting next month.

Assistant Mayor Matteau relayed the Planning Board approved a subdivision, finalized the CIP, finalized an Ordinance for complexes, and discussed Airbnb's.

Councilor Batchelder noted the Conservation Commission discussed the Ink Factory clean up.

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Councilor Tremblay noted the Historic District Commission meets tomorrow.

Policy and the Airport Committee have not met yet.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Girard asked to re-address the Committee openings at the next meeting.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 8:53p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to adjourn.

Voice vote:

Tremblay – yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council